

constitute a cause of action, if it appears that plaintiff is entitled to any relief against defendant, the complaint will survive the demurrer, even if the facts may not be clearly stated or though plaintiff may demand relief to which he is not entitled under facts alleged. (*Augustine v. Trucco* (1954) 124 Cal.App.2d 229, 237.) In fact, it is error for trial court to sustain demurrer when plaintiff has stated cause of action under any possible legal theory. (*Howard Jarvis Taxpayers' Assn. v. Board of Supervisors* (1996) 41 Cal.App.4th 1363, 1372.) This cause of action independently alleges that the foreclosure was wrongful based on the violation of the Settlement Agreement. (SAC, ¶ 67.) This is a possible legal theory regardless of the Civil Code § 2923.5 and therefore, the allegations are sufficient for pleading purposes.

Unfair Business Practices: The Aguilers argue that because the other three causes of action fail, the UCL claim fails as well. But as stated above, the other three causes of action are not subject to demurrer. The UCL cause of action is properly stated.

**Motion to Strike:** A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of “malice” or intent to injure plaintiff are required, because fraud is an alternative basis for recovery (“oppression, fraud or malice”). (*Stevens v. Sup.Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610.) Because the fraud claim survives demurrer as stated above, so too does the request for punitive damages.

The Aguilers also seek to strike paragraphs 40-42, 45, and 73 as “improper surplusage.” The Aguilers argue these paragraphs belong in a brief and not a complaint. There is nothing stating that a complaint cannot contain citations to case law. While not necessarily required for stating a claim, it is unclear to what end this request is made.

## 2.

| CASE #      | CASE NAME                 | HEARING NAME                                |
|-------------|---------------------------|---------------------------------------------|
| CVME2510697 | COX VS TULIP<br>CREMATION | MOTION TO COMPEL PRODUCTION OF<br>DOCUMENTS |

**Tentative Ruling:** Continue to September 22, 2026. The opposition is untimely. The Court will exercise its discretion to consider the late opposition. (See *Kapitanski v. Von's Grocery Store* (1983) 146 Cal. App. 3d 29, 32.) Plaintiffs shall have an additional opportunity to file a Supplemental Reply (Plaintiffs had only one day to reply and part of the brief related to the untimely Opposition). The Supplemental Reply (no more than 5 pages) shall be filed no later than 5 days before the continued hearing.